

HOUSE BILL 2132

By Bricken

AN ACT to amend Tennessee Code Annotated, Title 12
and Title 68, relative to storm drain safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 221, Part 1, is amended by
adding the following new section:

68-221-109.

(a) All newly installed storm drains and culverts constructed after July 1, 2026,
must be equipped with a safety cover or grate if the opening is large enough that a child
could reasonably fall into or become trapped within the structure.

(b) For purposes of this section, a storm drain opening is deemed large enough
to require a safety cover if:

(1) The opening exceeds twelve inches (12") in diameter or width; or

(2) The opening is otherwise accessible and poses a risk of bodily entry
by a child.

(c) Safety covers or grates must be:

(1) Constructed of durable material capable of withstanding expected
water flow and debris;

(2) Secured to prevent unauthorized removal; and

(3) Designed to prevent accidental entry while allowing for proper
drainage.

(d) This section applies to all public infrastructure projects funded or approved
by a state agency, municipality, metropolitan government, or county government.

(e) The department shall promulgate rules to implement this section, including specifications for approved safety covers and inspection protocols.

SECTION 2. Tennessee Code Annotated, Title 12, Chapter 4, Part 1, is amended by adding the following new section:

(a) All contracts for public works involving stormwater infrastructure must include provisions requiring compliance with § 68-221-109.

(b) If a contractor fails to install safety covers as prescribed in § 68-221-109, then any party who contracts with the contractor for the installation of the covers may withhold payment and seek corrective action and other penalties as provided by contract or by law.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.